

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 2112

By: Murdock of the Senate

and

Worthen and Newton of the
House

11 COMMITTEE SUBSTITUTE

12 An Act relating to open pasture roads; amending
13 Section 1, Chapter 191, O.S.L. 2024 (4 O.S. Supp.
14 2025, Section 116), which relates to open pasture
15 road designations; modifying definition; modifying
16 requirements for designation of an open pasture road;
17 removing certain time limitation; granting certain
18 authority to boards of county commissioners; updating
19 statutory language; and providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY Section 1, Chapter 191, O.S.L.
21 2024 (4 O.S. Supp. 2025, Section 116), is amended to read as
22 follows:

23 Section 116. A. As used in this section:

1 1. "Cattle crossing signage" means a sign in a ~~twenty-four (24)~~
2 ~~inch~~ twenty-four-inch diamond shape that depicts a black cow graphic
3 on a yellow background; and

4 2. "Open pasture road" means a road maintained by a county~~+~~
5 where the land on both sides of the road is owned or leased by the
6 same owner or lessee~~+~~ and ~~a~~ such roadway is without fencing.

7 B. Any public road, as defined in Section 232 of Title 69 of
8 the Oklahoma Statutes, in whole or in part, that is maintained by a
9 county and that meets the following conditions ~~by November 1, 2025,~~
10 shall be designated as an open pasture road:

11 1. Cattle guards have been installed at the access points of
12 such road or part thereof; and

13 2. ~~The land on either side of the road or part thereof to be~~
14 ~~designated is owned by a single party; and~~

15 3. ~~There is no fencing erected on such land on either side of~~
16 ~~the road~~ Cattle are allowed to be unrestrained or to run at large
17 through such roads.

18 It shall be the responsibility of the property owner to notify
19 the board of county commissioners that the roadway is eligible to be
20 designated as an open pasture road. Such notification shall state
21 the proposed action and clearly show on a map the location and
22 terminals of the road. The map shall also demonstrate that the
23 property where the road is located belongs to the property owner
24 requesting such designation.

1 C. The board of county commissioners shall cause the erection
2 of cattle crossing signage at the terminals of the open pasture
3 road. The cost associated with such signage shall be provided by
4 the property owner requesting such designation.

5 D. Neither the property owner nor the owner of livestock that
6 are on property where an open pasture road is located shall be
7 liable for damages to any motor vehicle or occupants thereof caused
8 by collision with livestock on a designated open pasture road.

9 ~~E. Only a public road meeting the requirements of subsection B~~
10 ~~of this section on November 1, 2025, may be designated as an open~~
11 ~~pasture road. After such date, even if conditions on a property~~
12 ~~change to meet the requirements of subsection B of this section,~~
13 ~~such property may not be designated as~~ The board of county
14 commissioners shall have authority to designate an open pasture
15 road.

16 F. Once annually, the owner of a property where an open pasture
17 road is located shall provide notice to the board of county
18 commissioners demonstrating that the property continues to meet the
19 requirements of subsection B of this section. Such notice shall
20 also include an indication that the property owner desires such
21 designation to continue. If such property owner indicates that ~~they~~
22 the owner no longer ~~desire~~ desires for such designation to continue,
23 or if the notice demonstrates that the property no longer meets any
24 of the conditions required by subsection B of this section, the road

1 shall lose the designation and the owner of such property shall have
2 thirty (30) days after the board of county commissioners receives
3 such notice to ensure any livestock on the property are fenced out
4 of the roadway.

5 SECTION 2. This act shall become effective November 1, 2026.

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7 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
8 OVERSIGHT, dated 04/15/2026 - DO PASS, As Amended.
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